

HOUSE No. 5272

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 25, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 380) of Kenneth I. Gordon, Danilo A. Sena and others for legislation to establish a social work licensure compact, reports recommending that the accompanying bill (House, No. 5272) ought to pass.

For the committee,

TACKEY CHAN.

HOUSE No. 5272

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to effectuate Massachusetts’ participation in the social work licensure compact.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after Chapter 112A the
2 following new chapter:-

3 CHAPTER 112B.

4 SOCIAL WORK LICENSURE COMPACT.

5 Section 1. As used in this chapter, the following words shall have the following meanings
6 unless the context clearly requires otherwise:

7 “Active military member”, any individual with full-time duty status in the active armed
8 forces of the United States including members of the National Guard and Reserve.

9 “Adverse action”, any administrative, civil, equitable or criminal action permitted by a
10 state’s laws which is imposed by a licensing authority or other authority against a regulated
11 social worker, including actions against an individual’s license or multistate authorization to
12 practice such as revocation, suspension, probation, monitoring of the licensee, limitation on the

licensee’s practice, or any other encumbrance on licensure affecting a regulated social worker’s authorization to practice, including issuance of a cease and desist action or summary suspension.

“Alternative program”, a non-disciplinary monitoring or practice remediation process approved by a licensing authority to address practitioners with an impairment.

“Compact”, or “Social Work Licensure Compact”, the legally binding agreement between member states as adopted by the Compact Commission member states as part of the Social Work Licensure Compact Legislation project funded by the Department of Defense and reviewed by Council of State Governments National Center for Interstate Compacts, and as may be entered into by the commonwealth in accordance with this chapter.

“Compact Commission” or “Commission”, the government agency whose membership consists of all states that have enacted the Social Work Licensure Compact, and which shall operate as an instrumentality of the member states.

“Current significant investigative information”, (i) investigative information that a licensing authority, after a preliminary inquiry that includes notification and an opportunity for the regulated social worker to respond, has reason to believe is not groundless and, if proved true, would indicate more than a minor infraction as may be defined by the commission; or (ii) investigative information that indicates that the regulated social worker represents an immediate threat to public health and safety, as may be defined by the commission, regardless of whether the regulated social worker has been notified and has had an opportunity to respond.

“Data system”, a repository of information about licensees, including: continuing education, examination, licensure, current significant investigative information, disqualifying

events (if any), multistate licenses and adverse action information or other information as required by the commission.

“Disqualifying event”, any adverse action or incident which results in an encumbrance that disqualifies or makes the licensee ineligible to either obtain, retain or renew a multistate license or a license in the licensee’s home state.

“Encumbrance”, a revocation or suspension of, or any limitation on, the full and unrestricted practice of social work licensed and regulated by a licensing authority.

“Home state”, the member state that is the licensee’s primary domicile.

“Impairment”, a condition that may impair a practitioner’s ability to engage in full and unrestricted practice as a regulated social worker without some type of intervention and may include alcohol and drug dependence, mental health impairment, and neurological or physical impairments.

“Licensee”, an individual who currently holds a license from a state to practice as a licensed social worker in their home state.

“Licensing authority”, the board or agency of a member state, or equivalent, that is responsible for the licensing and regulation of regulated social workers; which for the commonwealth shall be the board of registration of social workers established in section 80 of chapter 13.

“Member state”, a state, commonwealth, district, or territory of the United States of America that has enacted a law authorizing its licensing authority to join or withdraw from the commission.

“Multistate authorization to practice”, a legally authorized privilege to practice, which is equivalent to a license, associated with a multistate license permitting the practice of social work in a remote state.

“Multistate license”, a license to practice as a regulated social worker issued by a home state licensing authority that authorizes the regulated social worker to practice in all member states under multistate authorization to practice.

“Qualifying national exam”, a national licensing examination approved by the commission.

“Regulated social worker”, a social worker licensed by a member state regardless of the title used by that member state.

“Remote state”, a member state other than the licensee’s home state.

“Rule” or “Rule of the commission”, a regulation or regulations duly promulgated by the commission, as authorized by the compact, that has the force of law.

“Single state license”, a social work license issued by any state that authorizes practice only within that home state and does not include multistate authorization to practice in any member state.

“Social work” or “Social work services”, the application of social work theory, knowledge, methods, ethics, and the professional use of self to restore or enhance social, psychosocial, or biopsychosocial functioning of individuals, couples, families, groups, organizations, and communities through the care and services provided by a regulated social

worker as set forth in the member state's statutes and regulations in the state where the services are being provided, including counseling or clinical services.

"Social worker", an individual who by training and experience meets the requirements for licensing by the home state's board and is duly licensed to engage in the practice of social work and can qualify for multistate licensure.

"State", any state, commonwealth, district, or territory of the United States of America that regulates the practice of social work.

Section 2. (a) To be eligible to participate in the compact, a potential member state shall meet all of the following criteria:

(1) license and regulate the practice of social work at either the master's degree, clinical, or bachelor's degree equivalent of said master's degree;

(2) require applicants for licensure to graduate from a program that is:

(i) operated by a college or university recognized by the licensing authority;

(ii) accredited, or in candidacy by an institution that subsequently becomes accredited, by an accrediting agency recognized by either: (A) the Council for Higher Education Accreditation, or its successor; or (B) the United States Department of Education; and

(iii) corresponds to the licensure sought as outlined in section 3;

(3) require applicants for clinical licensure to complete a period of supervised practice; and

(4) have a mechanism in place for receiving, investigating, and adjudicating complaints about regulated social workers.

(b) To maintain membership in the compact a member state shall:

(1) require that licensees applying for a multistate license pass a qualifying national exam for the corresponding category of multistate license sought as outlined in section 3;

(2) participate fully in the commission's data system, including using the commission's unique identifier as defined in rules;

(3) notify the commission, in compliance with the terms of the compact and rules promulgated by said commission, of any adverse action or the availability of current significant investigative information regarding a licensee;

(4) implement procedures for considering the criminal history records of applicants for a multistate license. Such procedures shall include the submission of fingerprints or other biometric-based information by applicants for the purpose of obtaining an applicant's criminal history record information from the Federal Bureau of Investigation and the agency responsible for retaining that state's criminal records;

(5) comply with the rules of the commission;

(6) require applicants seeking multistate authorization under the compact to be licensed in the home state and meet the home state's qualifications for licensure or renewal of licensure, as well as all other applicable home state laws;

(7) authorize a regulated social worker holding a multistate license in any member state to practice in accordance with the terms of the compact and rules of the commission; and

115 (8) the member state shall designate an individual to represent and participate in the
116 commission meetings.

117 (c) A member state meeting the requirements of subsections (a) and (b) of this section
118 shall designate the categories of social work licensure that are eligible for issuance of a
119 multistate license for applicants in such member state. To the extent that any member state does
120 not meet the requirements for participation in the compact at any particular category of social
121 work licensure, such member state may choose, but is not obligated to, issue a multistate license
122 to applicants that otherwise meet the requirements of section 3 for issuance of a multistate
123 license in such category or categories of licensure.

124 (d) The home state licensing authority may charge a fee for granting the multistate
125 license.

126 Section 3. (a) To be eligible for a multistate license under the terms and provisions of the
127 compact, a regulated social worker applicant shall:

128 (1) have an active license in good standing with the licensing authority of their home
129 state;

130 (2) pay any applicable fees, including any state fee, for the multistate license;

131 (3) submit, in connection with an application for a multistate license, fingerprints or other
132 biometric data for the purpose of obtaining criminal history record information from the Federal
133 Bureau of Investigation and any agency responsible for retaining member state's criminal
134 records;

(4) notify their home state of any adverse action, encumbrance, or restriction on any professional license taken by any state within 30 days from the date the action is taken;

(5) meet any continuing competence requirements established by their home state; and

(6) abide by the laws, regulations, and applicable standards in the member state where the client is located at the time care is rendered.

(b) An approved applicant for a clinical-category multistate license shall meet all of the following requirements:

(1) fulfill a competency requirement, which shall be satisfied by either: (i) passage of a clinical-category qualifying national exam; or (ii) licensure of the applicant in their home state at the clinical category, beginning prior to such time as a qualifying national exam was required by the home state and accompanied by a period of continuous social work licensure thereafter, all of which may be further governed by the rules of the commission; or (iii) the substantial equivalency of the foregoing competency requirements which the commission may determine by rule;

(2) attain at least a master's degree in social work from a program that is:

(i) operated by a college or university recognized by the licensing authority; and

(ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting agency recognized by either: (A) the Council for Higher Education Accreditation or its successor; or (B) the United States Department of Education; and

(3) fulfill a practice requirement, which shall be satisfied by demonstrating completion of either:

156 (i) a period of postgraduate supervised clinical practice equal to a minimum of three
157 thousand hours; or

158 (ii) a minimum of two years of full-time postgraduate supervised clinical practice; or

159 (ii) the substantial equivalency of the foregoing practice requirements which the
160 commission may determine by rule.

161 (c) An approved applicant for a master's-category multistate license shall meet all of the
162 following requirements:

163 (1) fulfill a competency requirement, which shall be satisfied by either:

164 (i) passage of a masters-category qualifying national exam;

165 (ii) licensure of the applicant in their home state at the master's category, beginning prior
166 to such time as a qualifying national exam was required by the home state at the master's
167 category and accompanied by a continuous period of social work licensure thereafter, all of
168 which may be further governed by the rules of the commission; or

169 (iii) the substantial equivalency of the foregoing competency requirements which the
170 commission may determine by rule; and

171 (2) attain at least a master's degree in social work from a program that is:

172 (i) operated by a college or university recognized by the licensing authority; and

173 (ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting
174 agency recognized by either: (A) the Council for Higher Education Accreditation or its
175 successor; or (B) the United States Department of Education.

(d) An approved applicant for a bachelor's-category multistate license shall meet all of the following requirements:

(1) fulfill a competency requirement, which shall be satisfied by either:

(i) passage of a bachelor's-category qualifying national exam;

(ii) licensure of the applicant in their home state at the bachelor's category, beginning prior to such time as a qualifying national exam was required by the home state and accompanied by a period of continuous social work licensure thereafter, all of which may be further governed by the rules of the commission; or

(iii) the substantial equivalency of the foregoing competency requirements which the commission may determine by rule; and

(2) attain at least a bachelor's degree in social work from a program that is:

(i) operated by a college or university recognized by the licensing authority; and

(ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting agency recognized by either: (A) the Council for Higher Education Accreditation or its successor; or (B) the United States Department of Education.

(e) The multistate license for a regulated social worker is subject to the renewal of the licensing authority of their home state. The regulated social worker must maintain compliance with the requirements of subsection (a) of this section to be eligible to renew a multistate license.

(f) The regulated social worker's services in a remote state are subject to that member state's regulatory authority. A remote state may, in accordance with due process and that

196 member state's laws, remove a regulated social worker's multistate authorization to practice in
197 the remote state for a specific period of time, impose fines, and take any other necessary actions
198 to protect the health and safety of its citizens.

199 (g) If the regulated social worker's multistate license is encumbered by a member state,
200 the regulated social worker's multistate authorization to practice shall be encumbered in all
201 remote states until the member state removes the encumbrance.

202 Section 4. (a) Upon receipt of an application for multistate license, the home state
203 licensing authority shall determine the applicant's eligibility for a multistate license in
204 accordance with section 3 of this compact.

205 (b) If such applicant is eligible pursuant to section 3 of this compact, the home state
206 licensing authority shall issue a multistate license that authorizes the applicant or regulated social
207 worker to practice in all member states under a multistate authorization to practice.

208 (c) Upon issuance of a multistate license, the home state licensing authority shall
209 designate whether the regulated social worker holds a multistate license in the bachelors,
210 masters, or clinical category of social work.

211 (d) A multistate license issued by a home state to a resident in that state shall be
212 recognized by all compact member states as authorizing social work practice under a multistate
213 authorization to practice corresponding to each category of licensure regulated in each member
214 state.

215 Section 5. (a) Nothing in the compact, nor any rule of the commission, shall be construed
216 to limit, restrict, or in any way reduce the ability of a member state to enact and enforce laws,

217 regulations, or other rules related to the practice of social work in that state, where those laws,
218 regulations, or other rules are not inconsistent with the provisions of the compact.

219 (b) The compact, or any rule of the commission, shall not affect the requirements
220 established by a member state for the issuance of a single state license.

221 (c) Nothing in the compact, nor any rule of the commission, shall be construed to limit,
222 restrict, or in any way reduce the ability of a member state to take adverse action against a
223 licensee's single state license to practice social work in that state.

224 (d) The commission shall not limit, restrict, or in any way reduce the ability of a remote
225 state to take adverse action against a licensee's multistate authorization to practice in that state.

226 (e) The commission shall not limit, restrict, or in any way reduce the ability of a
227 licensee's home state to take adverse action against a licensee's multistate license based upon
228 information provided by a remote state.

229 Section 6. (a) Should a regulated social worker change home states, they must become
230 licensed by their new home state's authority, relinquish the license in their previous home state,
231 and apply to change their multistate license information within a time period designated by the
232 commission, as well as pay any fees the commission shall promulgate, in order to continue to
233 hold a multistate license in good standing,

234 (b) If a licensee changes their primary state of residence by moving from a member state
235 to a non-member state, or from a non-member state to a member state, then the licensee shall be
236 subject to the state requirements for the issuance of a single state license in the new home state.

(c) Nothing in the compact shall interfere with a licensee's ability to hold a single state license in multiple states; however, for the purposes of the compact, a licensee shall have only one home state, and only one multistate license.

(d) Nothing in the compact shall interfere with the requirements established by a member state for the issuance of a single state license.

Section 7. An active military member or their spouse shall designate a home state where the individual has a multistate license. The individual may retain their home state designation during the period the service member is on active duty, regardless of domicile changes during that time. This section shall not supersede any member state's enforcement of its law and regulations.

Section 8. (a) A member state may encumber their multistate license to practice within said member state.

(b) Should more than one member state investigate a regulated social worker the member states shall share information with other member states undergoing an investigation with said regulated social worker and through an agreement conduct a joint investigation; provided that this section shall not be in conflict with any member state's laws.

(c) If regulated social worker's license is revoked by its home state, the commission shall revoke their multistate license. At the conclusion of the home state's investigation and disciplinary action, it shall provide the decision to the commission.

(d) Any member state taking any action that may encumber a license shall notify the administrator of the data system managed by the commission. The administrator of the data

258 system shall promptly notify the home state and all other member states of any adverse actions
259 by remote states.

260 Section 9. The commonwealth's licensing authority is authorized to join or withdraw
261 from the commission, once the commission has been formed, bylaws and governing rules have
262 been established and at minimum 7 states are member states.